
MASTER SERVICE AGREEMENT

Preventive Maintenance and Service — 240 Ferry Street, Buildings 1 and 2

This Master Service Agreement (the “Agreement”) is made and entered into as of **March 15, 2026** (the “Effective Date”) by and between **Mill River Mechanical Co. LLC**, a Massachusetts limited liability company with its principal place of business at 112 Pleasant Street, Easthampton, Massachusetts 01027 (the “Contractor”), and **Northgate Mill Properties LLC**, a Massachusetts limited liability company with its principal place of business at 240 Ferry Street, Easthampton, Massachusetts 01027 (the “Owner”). The Contractor and the Owner are referred to in this Agreement individually as a “Party” and together as the “Parties.”

This Agreement replaces and supersedes in its entirety the Service Agreement between the Parties dated November 2, 2025.

1. Term and Renewal

1.1 Initial Term. This Agreement begins on the Effective Date of March 15, 2026 and continues for an initial term of twelve (12) months, expiring on **March 14, 2027** (the “Initial Term”).

1.2 Automatic Renewal. At the end of the Initial Term this Agreement renews automatically for successive terms of one (1) year each, on the same terms, unless either Party gives the other written notice of non-renewal at least sixty (60) days before the end of the then-current term. Notice under this section shall be given in writing to the address listed above for the receiving Party, or by electronic mail to an address the receiving Party has designated for notices.

1.3 Rate Adjustment on Renewal. The Contractor may propose an adjustment to the monthly fee for any renewal term by giving the Owner written notice at least sixty (60) days before the end of the then-current term. If the Owner does not accept the proposed adjustment in writing before the renewal date, the Agreement renews at the existing fee.

2. Scope of Services

2.1 Covered Premises. The Contractor shall provide preventive maintenance and service of the heating, ventilation, cooling and plumbing systems serving Buildings 1 and 2 at 240 Ferry Street, Easthampton, Massachusetts — forty-one (41) residential units together with the common areas of both buildings (the “Premises”).

2.2 Included Services. The services covered by the monthly fee are:

- A standing weekly service visit to the Premises on **Thursdays**, during which the Contractor's technician will walk both buildings, check operating equipment, address open work items, and log the visit for the Owner's records.
- Seasonal boiler startup each fall and seasonal boiler shutdown each spring, including combustion check, control verification, low-water cutoff test, and circulator inspection.
- Filter changes on all covered air handling and ventilation equipment on the manufacturer's recommended interval, filters included.

- Routine inspection and service of domestic hot water production and distribution, including mixing valves, circulators and expansion tanks.
- Routine plumbing service within the residential units and common areas, including fixture repairs, drain clearing at accessible cleanouts, and shutoff and valve service.
- Emergency response as described in Section 3.
- A written summary of work performed, delivered to the Owner monthly with the invoice.

2.3 Exclusions. This Agreement does not cover replacement of major equipment, system redesign or capacity changes, work required by fire, flood, vandalism, freeze damage or misuse, appliances owned by residents, or work inside walls, slabs or below grade that requires excavation or demolition. Work of that kind will be quoted separately and performed only on the Owner's written authorization.

2.4 Access. The Owner shall provide the Contractor reasonable access to the Premises, including mechanical rooms, roofs and individual units, and shall be responsible for resident notice where unit entry is required.

3. Emergency Response

3.1 Between **October 1 and April 30**, the Contractor shall respond on site within **four (4) hours** of the Owner's call for a no-heat or no-hot-water condition.

3.2 At all other times, and for all other conditions, the Contractor shall respond on site within **twenty-four (24) hours** of the Owner's call.

3.3 The Contractor shall maintain a telephone number answered at all hours for emergency calls and shall give the Owner written notice of any change to that number.

4. Fees and Payment

4.1 Monthly Fee. The Owner shall pay the Contractor **\$4,850.00 per month** for the services described in Section 2. The monthly fee is invoiced **monthly in advance**, on or about the first business day of each month.

4.2 Payment Terms. Payment terms are **Net 15** from the invoice date.

4.3 Work Outside Scope. Work outside the scope of Section 2, and work excluded under Section 2.3, is billed as follows:

Item	Rate
Labor — regular hours (Mon–Fri, 7:00 a.m. to 4:00 p.m.)	\$135.00 per hour
Labor — after hours, weekends and holidays	\$195.00 per hour
Materials and parts	Cost plus 15%

Out-of-scope labor is billed in quarter-hour increments after the first hour. The Contractor will obtain the Owner's authorization before beginning out-of-scope work expected to exceed \$1,000, except where immediate work is required to prevent injury or property damage.

4.4 Late Payment. Balances remaining unpaid more than thirty (30) days after the invoice date accrue a late charge of **one and one-half percent (1.5%) per month** on the outstanding balance.

4.5 Suspension. If any invoice remains unpaid more than sixty (60) days after its date, the Contractor may suspend services other than emergency response on ten (10) days written notice, until the account is brought current.

5. Insurance

5.1 The Contractor shall maintain, at its own expense, commercial general liability insurance with limits of not less than **\$2,000,000** per occurrence and in the aggregate, covering bodily injury and property damage arising out of the Contractor's operations.

5.2 The Contractor shall maintain workers' compensation insurance for all of its employees in the amounts and form required by the statutes of the Commonwealth of Massachusetts, and employer's liability coverage as customarily written with that policy.

5.3 The Contractor shall maintain commercial automobile liability coverage on all vehicles used in performance of this Agreement.

5.4 On the Owner's request, the Contractor shall furnish certificates of insurance evidencing the coverages required by this Section, and shall name the Owner as an additional insured on the general liability policy. The Contractor shall give the Owner notice of cancellation or material change to any required coverage.

6. Indemnification

6.1 The Contractor shall indemnify, defend and hold harmless the Owner and its members, managers, employees and agents from and against any claims, damages, losses and expenses, including reasonable attorneys' fees, arising out of bodily injury, death or damage to tangible property to the extent caused by the negligent acts or omissions of the Contractor, its employees or its subcontractors in the performance of this Agreement.

6.2 The Owner shall indemnify, defend and hold harmless the Contractor and its members, employees and agents on the same terms, to the extent caused by the negligent acts or omissions of the Owner, its employees or its agents.

6.3 Neither Party is liable to the other for consequential, incidental or indirect damages, including lost rents or lost profits, arising out of this Agreement.

7. Termination

7.1 **Termination for Cause.** Either Party may terminate this Agreement for a material breach by the other Party by giving written notice describing the breach. The Party receiving the notice has **thirty (30) days** from the date of the notice to cure the breach. If the breach is not cured within that period, the Party that gave the notice may terminate this Agreement by a second written notice, effective on delivery.

7.2 **Non-payment.** Failure to pay undisputed invoices within sixty (60) days of the invoice date is a material breach for purposes of Section 7.1.

7.3 **Effect of Termination.** On termination or expiration, the Owner shall pay the Contractor for all services performed and materials supplied through the effective date of termination, prorated for any partial month. The Contractor shall return to the Owner all keys, access cards and Owner property, and shall provide the Owner with copies of equipment records and service logs it holds for the Premises.

8. General Provisions

8.1 **Independent Contractor.** The Contractor performs this Agreement as an independent contractor. Nothing in this Agreement creates a partnership, joint venture or employment relationship between the Parties.

8.2 **Licensing.** The Contractor shall hold and maintain all licenses required by the Commonwealth of Massachusetts and the City of Easthampton to perform the work described in this Agreement, and shall obtain

permits required for work it performs.

8.3 Subcontractors. The Contractor may use qualified subcontractors for specialty work and remains responsible for their performance under this Agreement.

8.4 Assignment. Neither Party may assign this Agreement without the other Party's written consent, which shall not be unreasonably withheld, except that either Party may assign this Agreement to a successor to substantially all of its business or to a purchaser of the Premises.

8.5 Force Majeure. Neither Party is liable for delay or failure to perform caused by events beyond its reasonable control, provided the affected Party gives prompt notice and resumes performance as soon as practicable.

8.6 Governing Law. This Agreement is governed by and construed in accordance with the laws of the **Commonwealth of Massachusetts**, without regard to its conflict of laws rules. The Parties consent to the jurisdiction of the courts of Hampshire County, Massachusetts.

8.7 Severability. If any provision of this Agreement is held unenforceable, the remaining provisions remain in full force and effect.

8.8 Amendment. This Agreement may be amended only by a written instrument signed by both Parties.

8.9 Entire Agreement. This Agreement, including any exhibits attached to it, is the entire agreement between the Parties concerning its subject matter. It supersedes all prior and contemporaneous agreements, proposals, understandings and representations, written or oral, between the Parties concerning that subject matter, including the Service Agreement dated November 2, 2025.

The Parties have executed this Agreement as of the Effective Date written above.

CONTRACTOR — MILL RIVER MECHANICAL CO. LLC

Signature

Dana Mercier
Member

Date

March 15, 2026

OWNER — NORTHGATE MILL PROPERTIES LLC

Signature

Karen Vostok
Managing Member

Date

March 15, 2026